

**CHAPTER lvi.**

An Act to empower the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne to convey to trustees for the Royal Victoria Infirmary at Newcastle-upon-Tyne for the sick and lame poor of the said city and county and of the counties of Northumberland and Durham a portion of the Castle Leazes for an extension of the said infirmary and for other purposes.

A.D. 1917.

[21st August 1917.]

WHEREAS there is within the city and county of Newcastle-upon-Tyne (in this Act referred to as "the city") a tract of land containing about one thousand one hundred acres bearing in different parts the several names of "the Town Moor" "the Castle Leazes" and "the Nuns Moor" but ordinarily and collectively called and hereinafter referred to as "the Town Moor":

And whereas the lord mayor aldermen and citizens of the city (in this Act referred to as "the Corporation") are or claim to be entitled to the soil of the Town Moor for an estate in fee simple but the same is subject to a right or benefit of herbage in the resident freemen or burgesses of the city and the resident widows of deceased freemen or burgesses of the city (ordinarily and collectively called and hereinafter referred to as "the freemen") which right or benefit is known as and is in this Act called "herbage right":

And whereas by the Newcastle-upon-Tyne Town Moor Act 1774 provisions were enacted for and in relation to the enjoyment management and improvement of the surface of the Town Moor and within certain limits the enclosure thereof:

14 Geo. 3.
c. 105.

A.D. 1917. And whereas in the preamble to the Newcastle-upon-Tyne
 33 & 34 Vict. Improvement Act 1870 it was recited (among other things
 c. cxx. relating to the Town Moor) that in order to make the Town
 Moor more beneficial to the borough it was expedient that a
 better system of management should be established by agree-
 ment or arbitration between the Corporation and the stewards
 and wardens of the companies of freemen of the borough as
 representing the interests of the freemen and it was by the
 said Act enacted (among other things) that a committee (herein-
 after called "the stewards committee") of the said stewards
 and wardens should be annually appointed to act for and on
 behalf of the said stewards and wardens and freemen for all
 purposes relating to the Town Moor :

61 & 62 Vict. And whereas by the Newcastle-upon-Tyne Corporation (New
 c. ccxxvii. Infirmary Site) Act 1898 the Corporation with the consent by
 resolution of the majority of the said stewards and wardens
 were authorised to appropriate and convey to trustees for the
 Royal Infirmary at Newcastle-upon-Tyne freed and discharged
 from all herbage right a portion not exceeding ten acres in
 extent of the Castle Leazes as a site for a new hospital or
 infirmary for the sick and lame poor of the city and of the
 adjoining counties of Northumberland and Durham and the said
 trustees were empowered to accept and hold the same for the
 purpose aforesaid and it was provided by the said Act that upon
 the execution of such conveyance all herbage right and all
 rights of way and rights of user in or upon or over the said
 portion of lands so conveyed should be by virtue of that Act
 extinguished :

And whereas by an indenture dated the seventeenth day of
 May one thousand nine hundred and made between the Corpo-
 ration of the first part the Elswick Coal Company Limited of
 the second part John Duguid Walker of the third part Frederick
 John Brown of the fourth part and Richard Clayton James
 Edward Woods William Davies Stephens Thomas George Gibson
 Thomas Bell Joseph John Gurney Riley Lord and George Hare
 Philipson of the fifth part the said portion of the Castle Leazes
 containing by admeasurement ten acres was conveyed to the use
 of the parties of the fifth part in fee simple as a site for a new
 hospital or infirmary for the sick and lame poor of the city and
 of the said adjoining counties (inter alia) freed and discharged
 from all herbage right and rights of way and rights of user :

And whereas a new infirmary was built on the site comprised in the said indenture: A.D. 1917.

And whereas there is urgent need for the provision of accommodation for orthopædic treatment of sick and disabled persons whose injuries have arisen in the course of the present war and the capacity of the infirmary is also severely taxed by reason of the increasing number of persons employed in factories and works in the city and in Northumberland and Durham and it is expedient that immediate steps be taken to provide such accommodation and to extend and enlarge the infirmary:

And whereas the extension and enlargement of the infirmary is not practicable elsewhere than on lands forming part of the Castle Leazes and the Corporation as owners or reputed owners of the soil and the stewards committee as representing those entitled to the herbage right are willing to allocate and appropriate the portion of the Castle Leazes in this Act defined to trustees for the purposes of such accommodation extension and enlargement as aforesaid and it is expedient that the Corporation and the stewards committee should be empowered to appropriate and convey the said portion of the Castle Leazes for such purposes subject to the provisions hereinafter set forth and that trustees for the said infirmary should be appointed and empowered to accept such appropriation and conveyance and to hold the said lands for and on behalf of the infirmary:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Royal Victoria Infirmary Short title.
Newcastle-upon-Tyne Act 1917.

2.—(1) The Corporation and the stewards committee according to their respective estates and interests may without any consideration therefor convey to Sir George Hare Philipson Knight William John Sanderson James Edward Woods Albert Morton Martin The Right Honourable William Henry Armstrong Fitz Patrick Baron Armstrong George Lunn Sir Joseph Baxter Ellis Knight John Duguid Walker Sir Riley Lord Knight Charles

Appropriation and conveyance of portion of Castle Leazes for extension of infirmary.

A.D. 1917. — Irwin William Sutton Robert Henzell John Bolam William Weir John Cairns William Straker Frederick Wake Robert Young and John Edmund Swan or the survivors of them (together hereinafter called "the trustees") as trustees for the Royal Victoria Infirmary at Newcastle-upon-Tyne freed and discharged from all herbage right and all public rights of way and rights of user in or upon or over the same (but subject and except and reserved as hereinafter mentioned) the lands forming part of the Castle Leazes described in the schedule to this Act and coloured green on the signed plan hereinafter referred to as a site to be used for or in connexion with extensions of the said infirmary for the reception and treatment not only of the sick and lame poor of the city and the adjoining counties of Northumberland and Durham but also of discharged disabled officers and men of His Majesty's forces and the trustees may accept and hold the same for the purposes or any of the purposes aforesaid.

(2) On the execution of such conveyance the herbage right and all public rights of way and rights of user in upon or over the lands so conveyed (except as hereinafter provided and so far as may be excepted and reserved by such conveyance) shall be by virtue of this Act extinguished.

(3) The signed plan hereinbefore referred to means the plan signed in duplicate by the Right Honourable the Viscount Hutchinson (Earl of Donoughmore) the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred of which plan one copy has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and the other copy has been deposited in the Private Bill Office of the House of Commons.

Provision
of new foot-
path and
stopping up
of certain
existing
footpaths.

3. The trustees shall provide at the expense of the said infirmary and to the satisfaction of the Corporation a footpath for public use upon the strip of land coloured red on the said signed plan and upon the completion thereof the herbage right on the said strip shall cease and such footpath shall be maintained and repaired by the Corporation in the same manner as other footpaths on the Castle Leazes.

As from the completion of the said footpath to the satisfaction of the Corporation all public rights of way over the existing footpaths across or over the lands described in the schedule to this Act shall cease and be extinguished.

4. If at any time hereafter the lands coloured green on the said signed plan shall cease to be used for purposes of or in connexion with the said infirmary the said lands shall thereupon revert to and revest in the Corporation for all such estate and interest as they had therein immediately before the passing of this Act and shall for all purposes again form part of the Castle Leazes and be subject to the herbage right and other rights of the freemen and their stewards and wardens as enjoyed by them immediately before the passing of this Act and the said lands coloured red shall remain and be a public footpath.

A.D. 1917.

Revesting of
lands in Cor-
poration and
re-instate-
ment of
rights in cer-
tain events.

5. The infirmary as extended and enlarged under the powers of this Act may be used by persons other than the sick and lame poor of the city and the adjoining counties of Northumberland and Durham for such treatment as may ordinarily be given thereat and under such conditions and regulations as the house committee of the said infirmary may from time to time prescribe but so that the sick and lame poor of the city and the counties of Northumberland and Durham have preference in admission to the infirmary over other persons applying for admission thereto.

Infirmary
may be
used by per-
sons other
than those
now entitled
to use it.

6. The costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto (as taxed by the taxing officer of the House of Lords or of the House of Commons) and all expenses incurred by the Corporation the stewards committee and the said infirmary in carrying into execution the provisions of this Act including the completion of the said conveyance shall be borne and paid by the said infirmary out of moneys available for its general purposes.

Costs of Act.

A.D. 1917.

The SCHEDULE referred to in the foregoing Act.

LANDS TO BE APPROPRIATED AND CONVEYED UNDER THE
POWERS OF THIS ACT.

Lands in the parish and city of Newcastle-upon-Tyne forming part of the Castle Leazes and containing fifteen acres or thereabouts bounded on the north by the footpath and roadway separating the Castle Leazes from the property on the southerly side of Claremont Place and Claremont House on the south partly by the present infirmary and partly by Richardson Road on the east partly by the said infirmary and partly by Queen Victoria Road and on the west by other lands forming part of the Castle Leazes.

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